IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF GEORGIA
ATLANTA DIVISION

WE GOT U, LLC Plaintiff, vs. GARRY LEONARD; DIANA LEONARD; LEONARD CONSULTING, LLC; and FSELL MARKETING, LLC. Defendant.	1:26-CV-03474-VMC

AMENDED ANSWER AND COUNTERCLAIM

DEFENDANTS file their Amended Answer and Counterclaim as follows:

AFFIRMATIVE DEFENSES

FIRST DEFENSE

Plaintiff's Complaint fails to state a claim upon which relief can be granted.

SECOND DEFENSE

Plaintiff's claims are barred, in whole or in part, because the information at issue does not constitute protectable trade-secret information within the meaning of applicable law. Plaintiff has not identified any legally protectable trade secret with sufficient specificity, and the categories alleged are overbroad, generic, publicly

available, customer-known, readily ascertainable, independently known, and/or otherwise not protectable.

THIRD DEFENSE

Plaintiff's trade-secret and confidentiality-based claims are barred, in whole or in part, because Plaintiff failed to take reasonable measures to maintain the secrecy of the information it now claims was protected.

FOURTH DEFENSE

Plaintiff's claims are barred, in whole or in part, because Defendants did not wrongfully acquire, use, or disclose any protectable trade secret or confidential information of Plaintiff. Mere access and routine work activity does not establish actionable misappropriation.

FIFTH DEFENSE

To the extent the MOU is enforceable, it is enforceable as a compensation and profit-sharing agreement, but its ancillary confidentiality language is vague, ambiguous, indefinite, and/or limited in scope and cannot support the broad restrictions alleged.

SIXTH DEFENSE

Exhibit B does not constitute an enforceable restrictive-covenant or confidentiality agreement in the manner alleged by Plaintiff, and does not impose

the broad restrictive duties, access limitations, or post hoc prohibitions Plaintiff seeks to enforce.

SEVENTH DEFENSE

Plaintiff materially breached the MOU's payment provisions by failing to pay compensation owed to Garry Leonard under the parties' compensation arrangement, thereby excusing, barring, reducing, and/or limiting Plaintiff's contract-based claims and excusing further performance in whole or in part.

EIGHTH DEFENSE

Plaintiff's claims are barred by its own breach of contract.

NINTH DEFENSE

Any recovery by Plaintiff must be reduced, offset, or barred by amounts Plaintiff owes Defendants.

TENTH DEFENSE

Plaintiff's claims are barred, in whole or in part, because the subject information was independently known, independently developed, obtained from lawful sources, derived from Defendants' own experience and relationships, obtained from customers themselves, and/or not derived from any protectable secret of Plaintiff.

ELEVENTH DEFENSE

Plaintiff's claims are barred, in whole or in part, because any customer movement, business opportunities, or changes in business relationships resulted from customer choice, lawful competition, dissatisfaction with Plaintiff, and other independent causes rather than any actionable conduct by Defendants.

TWELFTH DEFENSE

Plaintiff cannot establish that any alleged act or omission by Defendants proximately caused the losses, customer departures, business interruptions, or damages alleged in the Complaint.

THIRTEENTH DEFENSE

Plaintiff cannot establish recoverable damages, or cannot establish damages in the amounts alleged, and any claimed damages are speculative, exaggerated, unsupported, and/or attributable to causes other than Defendants' conduct.

FOURTEENTH DEFENSE

Plaintiff's claims are barred, in whole or in part, by waiver, estoppel, acquiescence, and/or consent to the extent Plaintiff knew of, permitted, tolerated, or failed timely to object to the conduct, practices, access, relationships, or billing arrangements of which it now complains.

FIFTEENTH DEFENSE

Plaintiff's claims are barred, in whole or in part, because Plaintiff failed to take reasonable steps to mitigate any alleged damages.

SIXTEENTH DEFENSE

Plaintiff's claims are barred, in whole or in part, by the doctrine of unclean hands, including but not limited to Plaintiff's failure to pay earned compensation, interference with business relationships, and its assertion that items are trade secret and/or confidential when it knows that is not the case.

SEVENTEENTH DEFENSE

Plaintiff's claims are barred, in whole or in part, because, *assuming arguendo,* that the MOU's confidentiality provision is enforceable, the MOU does not define or identify the categories of information Plaintiff now claims were protected, and Plaintiff cannot establish that the materials identified in the Complaint were within the scope of that provision.

EIGHTEENTH DEFENSE

Defendants deny that they are liable in any way and that Plaintiff is entitled to prevail on any of its claims.

NINETEENTH DEFENSE

Defendants reserve the right to assert additional affirmative defenses as they become known through discovery and investigation.

Answer to Allegations in the Complaint

I. INTRODUCTION

1. Denied.

2. Denied.

3. Denied.

II. THE PARTIES

4. Admitted, upon information and belief.

5. Defendants admit that Garry Leonard resides in Fulton County, Georgia. Defendants deny that the MOU was an enforceable restrictive covenant/confidentiality contract. Rather, the agreement was "intended solely to define the terms of profit-sharing …" Admitted that Leonard had a marketing position with the company. The remaining allegations are denied.

6. Defendants admit that Diana Leonard resides in Georgia, is Garry Leonard's spouse, and signed a written job-description or role-description document attached as Exhibit B, but deny that she signed that document on March 10, 2025. Defendants aver that the document was signed on or about October 3, 2025. Defendants further deny that Exhibit B is an operative restrictive agreement, and deny the remaining allegations in Paragraph 6 except as expressly admitted.

7. Admitted.

8. Admitted.

9. Defendants admit that Faith Leonard and Ryan Rodriguez worked for WGU and that the Complaint does not presently name them as defendants. Defendants lack knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph 9 and on that basis deny the same.

III. JURISDICTION AND VENUE

10. The allegations in Paragraph 10 state legal conclusions to which no response is required. To the extent a response is required, Defendants do not contest that the Complaint purports to invoke federal-question jurisdiction.

11. The allegations in Paragraph 11 state legal conclusions to which no response is required. To the extent a response is required, Defendants deny any entitlement to relief on the state-law claims.

12. The allegations in Paragraph 12 state legal conclusions to which no response is required. To the extent a response is required, Defendants admit only that Garry and Diana are Georgia citizens and deny the remaining allegations.

13. Defendants admit that Garry and Diana reside in Fulton County, Georgia, and that Leonard Consulting and FSELL have principal offices in Fulton County, Georgia. Defendants deny the remaining allegations in Paragraph 13 to the extent they characterize disputed conduct. Defendants specifically deny that they committed any acts that gave rise to Plaintiff's claims and deny any liability.

14. The allegations in Paragraph 14 state legal conclusions to which no response is required. To the extent a response is required, Defendants admit only that they reside or maintain principal offices in Fulton County, Georgia, and otherwise deny the allegations.

IV. FACTUAL BACKGROUND

A. WGU and its Business

15. No response is necessary to the allegations of paragraph 15 as not directed to Defendants. To the extent a response is required, Defendants lack knowledge sufficient to admit Plaintiff's internal business allegations and therefore deny them, except admit that Plaintiff purports to provide marketing services.

16. No response is necessary to the allegations of paragraph 16 as not directed to Defendants. To the extent a response is required, Defendants lack knowledge sufficient to admit Plaintiff's internal business allegations and therefore deny them, except admit that Plaintiff purports to provide marketing services.

17. Denied.

B. Gary's Engagement under the MOU

18. Defendants admit that WGU and Leonard signed the MOU on or about May 20, 2025. Defendants deny that the MOU is enforceable in the manner or to the extent alleged by Plaintiff, and deny the remaining allegations of

paragraph 18. The MOU expressly states that its sole purpose is to define a profit sharing agreement.

19. Defendants admit that the MOU addresses profit-sharing compensation. Defendants deny any characterization beyond the express language of the document.

20. Defendants admit the allegations in Paragraph 20 to the extent they quote or summarize the MOU's statement that the agreement is intended solely to define the terms of profit-sharing and does not confer ownership. Defendants deny any contrary implication.

21. Defendants admit that the MOU contains a confidentiality provision. Defendants deny Plaintiff's characterization of that provision to the extent Plaintiff contends it created broad, enforceable restrictions covering the materials and conduct alleged in the Complaint. Defendants further aver that the provision is vague, indefinite, ambiguous, and/or limited in scope.

22. Defendants admit that the MOU contains a provision regarding thirty days' written notice. Defendants deny any material breach causing damages.

23. Defendants admit paragraph 23 to the extent it accurately quotes or summarizes the MOU.

C. Diana's Engagement as Director of Client Services

24. Defendants deny the allegations in Paragraph 24 to the extent they allege that Diana Leonard signed Exhibit B on or about March 10, 2025. Defendants aver that Diana Leonard signed the document attached as Exhibit B on or about October 3, 2025. Defendants further deny Plaintiff's characterization of Exhibit B to the extent Plaintiff contends it imposed broad restrictive covenants or access prohibitions beyond the document's actual text.

25. Defendants admit that Exhibit B contains a Director of Client Services job description and related terms of work, to the extent accurately quoted or summarized. Defendants deny that Exhibit B establishes the broad contractual restrictions or legal conclusions Plaintiff attempts to draw from it.

26. Defendants admit that Exhibit B contains the quoted 'Special Consideration' language. Defendants deny Plaintiff's characterization of that language to the extent Plaintiff contends it created the broad restrictive obligations alleged in the Complaint. Additionally, Robin Burnette, the president of WGU, specifically told Diana after the document was signed that he wanted her to be involved in the work of the other Leonards at WGU.

27. Defendants deny the allegations in Paragraph 27. Defendants specifically deny that Exhibit B constituted a broad restrictive covenant,

confidentiality agreement, or categorical prohibition on the conduct alleged by Plaintiff, and deny that it has the legal effect Plaintiff attributes to it.

D. The Leonards' Controlled LLCs

28. Defendants deny the allegations in Paragraph 28, including that Leonard Consulting and FSELL were used as wrongful "payment conduits" or that either entity was used to conduct any unlawful scheme.

29. Defendants lack knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph 29 concerning the number, contents, and characterization of invoices allegedly issued by Leonard Consulting, and therefore deny the same. To the extent Paragraph 29 alleges that Leonard Consulting submitted invoices to WGU, Defendants admit only that Leonard Consulting submitted certain invoices to WGU during a relevant period. Defendants deny the remaining allegations.

30. Defendants admit that FSELL Marketing, LLC was organized on or about February 18, 2026. FSELL was organized to submit invoices to WGU. Defendants deny the remaining allegations.

31. Defendants admit only that FSELL was created prior to Garry's departure. Defendants deny all remaining allegations of this paragraph.

32. Defendants admit that Leonard Consulting and FSELL list principal offices associated with the Leonards' residence. Defendants admit they share the

same registered agent to the extent reflected in public filings. Defendants deny any improper inference.

E. WGU's Trade Secrets and Confidential Business Information

33. Defendants deny the allegations in Paragraph 33 to the extent they assert the existence of protectable trade secrets, or even confidential information. Defendants further deny that the categories identified were non-public, secret, or sufficiently specific trade-secret compilations as alleged.

34. Denied.

35. Denied.

36. Denied.

37. Denied.

F. Formation of FSELL and Setup of Competing Operation

38. Defendants admit that Garry Leonard organized FSELL on or about February 18, 2026. Defendants deny the remaining allegations of this paragraph.

39. Denied.

40. Admitted that FSELL began invoicing WGU on or about February 27, 2026. The appearances of the invoices speak for themselves and Defendants deny any inconsistent allegations. Defendants deny the remaining allegations of this paragraph.

G. The Access, Download, and Sync Window

41. Denied.

42. Defendants lack knowledge or information sufficient to admit Plaintiff's characterization of logs without inspection of the underlying data and therefore deny the allegations in Paragraph 42. Defendants deny any liability or wrongdoing.

43. Defendants lack knowledge or information sufficient to form a belief as to the accuracy of Plaintiff's asserted event counts in Paragraph 43 and therefore must deny the same. Defendants further deny that any alleged downloads or sync events constituted wrongdoing, misuse, or misappropriation.

44. Any downloads speak for themselves and Defendants deny any inconsistent allegations. Defendants deny the allegations in Paragraph 44 to the extent they characterize any materials as trade secrets, confidential, or wrongfully downloaded or used.

45. Any downloads that occurred speak for themselves and Defendants deny any inconsistent allegations with what was actually downloaded. Defendants deny the allegations in Paragraph 45 to the extent they characterize any materials as protectable, wrongfully accessed, or wrongfully downloaded or used.

46. Defendants lack knowledge or information sufficient to form a belief as to the truth of Plaintiff's characterization of account activity reflected in

Paragraph 46, including the alleged concentration, 'peak download window,' and asserted correlation to other events, and therefore deny the same.

47. Defendants deny the allegations in Paragraph 47, including the assertions that the identified files were not generic, that they would allow a successor agency to replicate work or transition digital properties, or that any such files were improperly used.

48. Denied.

H. The Boccio/New Road Advertising Email

49. Defendants deny the allegations in Paragraph 49 to the extent Plaintiff characterizes the referenced invitation as an improper email to Garry Leonard in a representative capacity for WGU. Defendants admit only that Plaintiff attaches as Exhibit C a screenshot that it contends reflects an electronic invitation relating to a presentation. Defendants deny that Exhibit C establishes the purpose of the communication, the capacity in which Garry Leonard was contacted, or any improper conduct.

50. Any contacts between Garry and Wally's speak for themselves and Defendants deny any inconsistent allegations. Defendants deny the remaining allegations and Defendants further deny any implication that such allegations establish wrongdoing by Defendants.

51. Garry never opened the email. Defendants deny the allegations of paragraph 51.

52. Defendants deny the allegations in Paragraph 52 as written. Defendants further deny that Exhibit C establishes there was no legitimate non-WGU or individual basis for the email, and deny that the exhibit establishes the capacity in which the email was sent to Garry, much less any wrongdoing or liability.

53. Defendants admit that the email was routed to the spam folder. Defendants lack knowledge or information sufficient to form a belief as to the truth of Plaintiff's allegations concerning Plaintiff's post-resignation review, Plaintiff's search for internal communications, and Plaintiff's asserted inferences from the absence of such communications, and on that basis deny the same. Defendants further deny that the absence of communications in Plaintiff's chosen channels establishes any improper conduct by Defendants.

54. The dates of emails and downloads speak for themselves and Defendants deny any inconsistent allegations. Defendants specifically deny that the allegations in Paragraph 54 establish any actionable connection between the referenced invitation, any alleged activity by Diana Leonard, and any improper conduct by Defendants. Defendants further deny that Plaintiff's timing allegations

establish that any communication was directed to Garry Leonard in a WGU representative capacity or that any WGU information was improperly used.

I. The March 30, 2026 Meeting

55. Defendants admit that Garry participated in a video conference with Robin Burnette and Angelica del Rosario on or about March 30, 2026. Defendants lack knowledge or information sufficient to form a belief as to the exact duration and otherwise deny any remaining inconsistent allegations.

56. Defendants admit that FSELL was already formed. Any invoices and invitations speak for themselves and Defendants deny any inconsistent allegations. Denied that Garry received the Boccio email because it was never opened and went to spam. Defendants deny all remaining allegations.

57. Defendants admit that, during the March 30, 2026 conversation, Robin Burnette made statements to the effect alleged in Paragraph 57 concerning a possible 50/50 partnership structure for working together through a different company. Defendants deny any remaining allegations in Paragraph 57 to the extent they inaccurately quote, characterize, or imply wrongdoing from that conversation.

58. Allegations are denied as stated and denied that Defendants engaged in any wrongdoing or are liable. Admitted that he did not disclose the New Road Advertising sharing invitation that went to his spam. Defendants deny that non-disclosure was wrongful or actionable.

59. Denied.

J. Brady CDJR and Reading Mitsubishi Cancel through Garry

60. Defendants admit that Brady CDJR terminated or sought to terminate WGU's services on or about April 1, 2026 through Garry, and that Garry communicated with Brady. Defendants deny the remaining allegations in Paragraph 60, including any allegation that Garry wrongfully failed to enforce Plaintiff's rights or caused the termination. Garry had informed Robin Burnette for months that Brady was telling him that they were unhappy with WGU. Robin told Garry that he didn't care if they left. The customer decisions were made by the customer.

61. Defendants admit that Reading Mitsubishi terminated or sought to terminate WGU's services on or about April 2, 2026 through Garry, and that Garry communicated with Reading Mitsubishi. Defendants deny the remaining allegations in Paragraph 61, including any allegation that Garry wrongfully failed to enforce Plaintiff's rights or caused the termination. Reading Mitsubishi was not happy with WGU and any customer decisions were made by the customer.

62. Defendants lack sufficient knowledge and information to form a belief as to the allegations of paragraph 62 and, therefore, must deny them. Defendants aver that any customer decisions were made by the customer.

63. Denied.

K. Garry's Resignation

64. Defendants admit that Garry Leonard resigned on or about said date. Defendants aver that Robin Burnette, president of WGU, was amicable about the resignation and did not object or say anything in protest or objection with regard to the 30 days provision. Defendants deny any material breach and all remaining allegations.

65. Defendants lack knowledge or information sufficient to form a belief as to Plaintiff's characterization of account activity on April 8, 2026 without looking at what Plaintiff is referring to, and therefore deny the allegations in Paragraph 65. Defendants deny any wrongdoing or liability.

L. Continuing Account-Focused Conduct by Persons Acting in Concert

66. Any roles that Faith and Garry had speak for themselves and Defendants deny any inconsistent allegations. Defendants deny the remaining allegations of this paragraph.

67. Any downloads that may have occurred speak for themselves and Defendants deny any wrongdoing or misappropriation. Denied that any items that were downloaded constituted confidential, proprietary information or trade secrets. Denied that any wrongdoing occurred or that Defendants are liable in any way.

68. Any downloads speak for themselves and Defendants deny any inconsistencies as to what was downloaded. Denied that any items that were

downloaded constituted confidential, proprietary information or trade secrets. Denied that any wrongdoing occurred or that Defendants are liable in any way.

69. Defendants lack sufficient knowledge and information as to the allegations of paragraph 69 and therefore must deny same.

70. Admitted that Faith and Ryan were terminated after WGU failed in its attempt to pressure them to sign a noncompete on or about said date. Defendants deny the remaining allegations of paragraph 70.

M. The Evinmotors Departure

71. No response necessary to allegations of EvinMotors and Defendants deny any inconsistent allegations. Any assignments and roles of Garry and Faith speak for themselves and Defendants deny any inconsistent allegations. Defendants deny any wrongdoing or liability.

72. Defendants lack knowledge and information to form a belief as to allegations of paragraph 72 and, therefore, must deny same.

73. Any communications between WGU and Evinmotors speak for themselves and Defendants deny any inconsistent allegations. Defendants deny the remaining allegations. Defendants aver that any customer decisions were made by the customer.

N. Matching Creative Formats Across former WGU Clients

74. Any advertisements speak for themselves and Defendants deny any inconsistent allegations. Defendants lack sufficient knowledge and information to know what WGU personnel observed and, therefore, must deny allegations of paragraph 74.

75. Defendants deny the allegations in Paragraph 75. Defendants specifically deny that any creative work, production formats, or transition information were improperly used. Defendants further aver that Reading Mitsubishi independently chose to do business with New Road and that Garry Leonard's relationship with Reading Mitsubishi pre-existed WGU.

O. The Cease and Desist Demand and Garry's Silence.

76. The cease and desist letter issued by counsel for plaintiff speaks for itself. Defendants deny they are liable or that the cease and desist has any merit.

77. Defendants admit that no substantive response to the cease and desist was sent before suit, and otherwise deny any implication of wrongdoing or liability.

P. Damages

78. Denied.

79. Denied.

80. Denied.

81. Denied.

82. Denied.

COUNT I
Violation of the Defend Trade Secrets Act, 18 USC § 1836 et seq
(All Defendants)

83. Defendants adopt and incorporate all preceding paragraphs as if set forth in full herein.

84. Denied.

85. Denied.

86. Denied.

87. Defendants lack sufficient knowledge and information to form a belief as to the allegations of paragraph 87 and, therefore, must deny same.

88. Denied.

89. Denied.

90. Denied.

91. Denied.

92. Denied.

93. Denied.

94. Denied.

COUNT II
Violation of the Georgia Trade Secrets Act, OCGA § 10-1-760 et seq
(All Defendants)

95. Defendants adopt and incorporate all preceding paragraphs as if set forth in full herein.

96. This paragraph calls for a legal conclusion and Defendants lack sufficient knowledge and information to form a belief as to the allegations and, therefore, must deny the allegations.

97. Denied.

98. Denied.

99. Denied.

COUNT III
Breach of Contract – Memorandum of Understanding
(Against Gary Leonard)

100. Defendant adopts and incorporates all preceding paragraphs as if set forth in full herein.

101. Defendant admits that he entered into the MOU. Defendant denies that the MOU is valid and enforceable in the manner alleged by Plaintiff with respect to confidentiality or other restrictive obligations, and denies the remaining allegations.

102. Denied.

103. Denied.

104. Denied.

105. Denied.

COUNT IV
Breach of Fiduciary Duty/Agent's Duty of Loyalty
(Against Gary Leonard)

106. Defendant adopts and incorporates all preceding paragraphs as if set forth in full herein.

107. Denied.

108. No response is necessary to the allegations of paragraph 108. To the extent a response is required, they are denied.

109. Denied.

110. Denied.

111. Denied.

112. Denied.

COUNT V
Breach of Fiduciary Duty/Duty of Loyalty
(Against Diana Leonard)

113. Defendant adopts and incorporates all preceding paragraphs as if set forth in full herein.

114. Denied.

115. Denied.

116. Denied.

117. Denied.

COUNT VI
Civil Conspiracy
(All Defendants)

118. Defendants adopt and incorporate all preceding paragraphs as if set forth in full herein.

119. Denied.

120. Denied.

121. Denied.

COUNT VII
Unjust Enrichment
(All Defendants, in the Alternative)

122. Defendants adopt and incorporate all preceding paragraphs as if set forth in full herein.

123. Denied.

124. Denied.

125. Denied.

126. Denied.

COUNT VIII
Punitive Damages Pursuant to OCGA § 51-12-5.1
(Against All Defendants)

127. Defendants adopt and incorporate all preceding paragraphs as if set forth in full herein.

128. Denied.

129. Denied.

COUNT IX
Attorneys' Fees and Expenses of Litigation Pursuant to OCGA §13-6-11
(Against All Defendants)

130. Defendants adopt and incorporate all preceding paragraphs as if set forth in full herein.

131. Denied.

132. Denied.

PRAYER FOR RELIEF

Defendants deny that Plaintiff is entitled to any relief whatsoever and deny the Prayer for Relief and all sections therein, including sections (a) through (h).

COUNTERCLAIM

Defendants/Counterclaim Plaintiffs Garry Leonard and Diana Leonard (collectively, "Counterclaim Plaintiffs"), by and through counsel, assert the following counterclaims against Plaintiff/Counterclaim Defendant We Got U LLC ("WGU" or "Counterclaim Defendant"):

Parties, Jurisdiction, and General Allegations

1. Counterclaim Plaintiffs repeat and reallege their responses and defenses to the Complaint as if fully set forth herein.

2. This Court has supplemental jurisdiction over these counterclaims because they arise out of the same transactions, occurrences, and controversy alleged in the Complaint. Counterclaim Plaintiffs demand a trial by jury.

3. On or about May 20, 2025, WGU and Garry Leonard entered into a Memorandum of Understanding ("MOU").

4. The MOU states that it was intended solely to define a profit-sharing arrangement between WGU and Garry Leonard for work performed.

5. WGU has sued Defendants on the theory that Defendants misappropriated trade secrets and confidential information, diverted clients, and acted unlawfully in competing with WGU.

6. Those allegations are false. The information at issue was not protectable trade-secret or confidential information of WGU, was not wrongfully used by Counterclaim Plaintiffs, and did not cause the customer movement alleged by WGU. WGU is aware of this yet has chosen to file this lawsuit in bad faith to disrupt business relationships and cause the Counterclaim Plaintiffs to incur fees and expenses.

7. Garry Leonard had pre-existing personal and business relationships with certain clients and contacts independent of WGU, and any decision by any

customer to continue, reduce, or discontinue business with WGU was made by that customer.

8. WGU also failed and refused to pay compensation earned by Garry Leonard under the MOU and the parties' course of dealing.

9. The amount owed to Garry Leonard is at least $50,000. Further amounts are owed but will need to be confirmed through an accounting.

10. WGU retained control over the client-account revenues, receipts, invoices, payments, and other records necessary to determine the amounts due to Garry Leonard under the MOU and the parties' course of dealing. The relevant funds, receipts, and account-level transactions were maintained in a manner that prevents Garry Leonard from independently determining the amounts due without access to WGU's records and an accounting, and cannot be determined through regular discovery.

11. The precise amount owed to Garry Leonard cannot be fully determined without access to WGU's books, records, account-level financial information, and a full accounting of amounts received, retained, withheld, charged back, offset, or otherwise applied by WGU in connection with the relevant client accounts.

12. Diana Leonard rendered valuable services for WGU for which she was not paid, and WGU accepted the benefit of those services.

Count I – Breach of Contract
(Against WGU by Garry Leonard)

13. Garry Leonard adopts and incorporates the preceding paragraphs as if fully set forth herein.

14. The MOU is enforceable as a compensation and profit-sharing agreement.

15. Garry Leonard performed his obligations under the MOU and the parties' course of dealing.

16. WGU breached the MOU by failing and refusing to pay Garry Leonard amounts earned and due under the MOU, including profit-sharing and/or related compensation.

17. The unpaid amount is at least $50,000.

18. As a direct and proximate result of WGU's breach, Garry Leonard has suffered damages in amounts to be proved at trial, together with pre-judgment and post-judgment interest, costs, and all other relief permitted by law.

Count II – Breach of Contract
(Against WGU by Diana Leonard)

19. Diana Leonard adopts and incorporates all preceding paragraphs as if set forth in full herein.

20. On or about October 3, 2025, Diana Leonard executed Exhibit B to WGU's Complaint, which reflected her role and related terms of work with WGU. Exhibit B did not constitute a broad restrictive covenant, confidentiality agreement, or post-employment prohibition as alleged by WGU. To the extent relevant here, however, Exhibit B and the parties' course of dealing reflected WGU's obligation to compensate Diana Leonard for services performed.

21. Diana Leonard performed services for WGU as required and for WGU's benefit.

22. WGU breached its obligation to Diana Leonard by failing and refusing to pay the full amount owed for her work, which is at least $4,694.43.

23. As a direct and proximate result of WGU's breach, Diana Leonard has suffered damages in amounts to be proved at trial, together with pre-judgment and post-judgment interest, costs, and all other relief permitted by law.

Count III – Quantum Meruit / Unjust Enrichment
(Against WGU by Garry Leonard and Diana Leonard)

24. Counterclaim Plaintiffs adopt and incorporate the preceding paragraphs as if fully set forth herein.

25. Garry Leonard rendered valuable services to WGU with the expectation of compensation.

26. WGU knowingly accepted and retained the benefit of those services.

27. It would be inequitable and unjust for WGU to retain the benefit of Garry Leonard's services without paying the value of the compensation earned.

28. Diana Leonard likewise rendered valuable services for WGU. WGU knowingly accepted and retained the benefit of those services, and it would be inequitable for WGU to retain that benefit without compensation.

29. Garry Leonard and Diana Leonard are entitled to recover under quantum meruit and/or unjust enrichment in an amount to be proved at trial.

Count IV – Equitable Accounting
(Against WGU by Garry Leonard)

30. Garry Leonard adopts and incorporates the preceding paragraphs as if fully set forth herein.

31. Garry Leonard's right to compensation under the MOU and the parties' course of dealing depends on account-level financial information, revenues, receipts, invoices, payments, and related records that are in WGU's possession, custody, or control.

32. Without an accounting of WGU's books and records, Garry Leonard cannot fully determine the amounts owed to him or the full extent to which WGU prevented recovery of compensation and profit-sharing to which he was entitled.

33. This request for accounting is asserted because the financial information necessary to determine the exact amounts due is uniquely within

WGU's control and the relevant transactions, payments, and account-level calculations cannot be fully and accurately ascertained without WGU's records.

34. Garry Leonard therefore seeks an accounting of the relevant books, records, receipts, invoices, payments, and account-level revenues necessary to determine the compensation due under the MOU and the parties' course of dealing.

Count V – Attorneys' Fees, Costs, and Expenses
(Against WGU by Counterclaim Plaintiffs)

35. Counterclaim Plaintiffs adopt and incorporate the preceding paragraphs as if fully set forth herein.

36. Counterclaim Plaintiffs seek attorneys' fees and expenses of litigation arising from WGU's substantive conduct underlying these counterclaims, including its refusal to pay earned compensation, its bad faith in the underlying transactions, and the unnecessary trouble and expense caused thereby, under OCGA § 13-6-11.

37. As a result, WGU is liable for attorneys' fees, costs, and expenses of litigation to the full extent permitted under law under OCGA § 13-6-11.

Jury Trial Demand

Defendants/Counterclaim Plaintiffs demand a trial by jury on all issues.

Prayer for Relief

WHEREFORE, Counterclaim Plaintiffs respectfully request that the Court:

A. Judgment in favor of Counterclaim Plaintiffs on the counterclaims;

B. Award all compensatory damages to which they are entitled under the law;

C. Order an accounting of the books, records, receipts, invoices, payments, and account-level financial information necessary to determine the amounts due to Garry Leonard;

D. Award all reasonable attorneys' fees, expenses, and costs to which counterclaimants are entitled to under OCGA §13-6-11 and other applicable law;

E. Award pre-judgment interest and post-judgment interest as allowed by law;

F. Award such other and further relief as the Court deems just and proper.

This 28th day of August, 2026.

POOLE HUFFMAN, LLC

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CERTIFICATE OF SERVICE

The undersigned certifies that this Certificate of Service has been served on counsel of record via the Court's CM/ECF system on this 28th day of August, 2026.

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